

STAFF REPORT

Terre Pont Summation

Zone Change Process

CASE NUMBER: UDC-13-00272 **FILE CODE:** TERP-Z
PREPARED BY: Jim Flesher
MEETING DATES: **Planning Commission:** August 5, 2013
City Council: August 12, 2013 (referral to Public Services Committee)

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change from **A-1 Agriculture & Rural Residential** and **MU Mixed Use** (County) to **CB Community Business** (City), pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

Staff Update (8/6/13): At its regular meeting Monday, August 5, 2013, the Cheyenne Planning Commission voted unanimously to recommend approval of the above described zone change.

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PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** August 5, 2013
City Council: August 12, 2013 (referral to Public Services Committee)

SUBMITTED: July 2, 2013

OWNER: Edward George Cole, et al (303) 659-7262
15649 Harvest Mile Rd
Brighton, CO 80603

APPLICANT /AGENT: Mark Butler (307) 635-6827
Inberg-Miller Engineers
350 Parsley Blvd
Cheyenne, WY 82007

PROJECT: Terre Pont

WORK DESCRIPTION: Establishing City zoning concurrent with annexation and preliminary plat

LOCATION:

- 1) Legal Description: Portion of Section 20, T.14N., R.66W., 6th P.M., Laramie County, WY
- 2) General Location: Northeast corner of Prairie Avenue and Frontier Mall Drive
- 3) Address: Vacant land

SIZE: 8.45 acres (2.19 acres of right-of-way)

CURRENT ZONING: A-1, Agriculture & Rural Residential, and MU, Mixed Use (County)

PROPOSED ZONING: CB, Community Business

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Hotel and future commercial development

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Retail	PUD	City
East	Vacant	A-1, MUB	City, County
West	Retail	CB	City

ZONE CHANGE ANALYSIS SUMMARY:

The area is designated Community Business on the PlanCheyenne Future Land Use Plan map and the proposed zone change appears to comply with criteria outlined in Section 2.2.1.d of the Cheyenne UDC; therefore staff recommends approval of the zone change.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property is approximately 8.45 acres of vacant land northeast of and adjacent to Frontier Mall Drive and Prairie Avenue. On the east side of the property is the platted but unbuilt Cutoff Road. The land raises several feet from Prairie Avenue, then slopes back down to where Rue Terre aligns. Frontier Mall Drive is fully constructed including the sidewalk. Prairie Avenue is built, but the sidewalk will need to be constructed as the property develops. Rue Terre and Cutoff Road are not constructed.



Looking northwest at subject property from south side of Prairie Avenue.

PROJECT DATA:

The property is currently zoned A-1, Agriculture & Rural Residential, and MU, Mixed Use, in the County. The proposed City zoning is CB, Community Business. Uses permitted by right in the CB zone include hotels and motels, medical clinics, office and retail uses, automotive service stations, and restaurants, among others.

A concurrent preliminary plat application proposes to subdivide the property into two lots. The west lot is proposed for development of an extended-stay hotel. No development on Lot 2 is proposed at this time.

Annexation is in process as well. Platting and zoning will not take effect prior to the annexation. Site plans and building permits will follow annexation, platting, and zoning and are administrative actions.

ZONE CHANGE ANALYSIS:

Zoning map amendments are reviewed in accordance with the criteria listed in 2.2.1.d of the UDC:

1 || Policies & Physical Patterns of PlanCheyenne - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Generally the proposal appears to be consistent with PlanCheyenne. The property is within the Urban Service Boundary. The Future Land Use Plan map in PlanCheyenne indicates Community Business for this property, which is primarily appropriate for general retail and office uses. Secondary uses may include multifamily housing (apartments). Hotels and motels are a permitted use in the CB zone district.

2 || Neighboring Property - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The properties to the south and west are already similarly developed. Across Frontier Mall Drive is a Buffalo Wild Wings restaurant and a retail center that includes Natural Grocers. To the south across Prairie Avenue is Petco and other big box retailers. The land to the north is unincorporated vacant land that will likely be developed as commercial or multifamily residential in the future after it is annexed. The proposed development should have a positive effect on adjacent vacant land by extending water and sewer lines and street improvements.

3 || Development Suitability - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

If the property is annexed into the City it will need City zoning prior to development. The subject property and proposed hotel are appropriate for the proposed CB zoning, which allows a variety of uses that are appropriate for the area.

4 || Subdivision Standards - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The zone change application was submitted concurrently with the plat and the proposal appears to be able to be developed according to the applicable standards in Article 4.

5 || Intent and Applicability - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

According to Section 5.4.2.a of the UDC: “The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas.” The development will need to conform to Chapter 6.9, General Commercial Design Standards, which will be reviewed on the subsequent site plans, and is intended to encourage quality site and building design and construction.

6 || Future Development - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Whether the proposed hotel is built or not, the proposed CB zoning is appropriate for the property. As mentioned previously, other allowed uses include retail, restaurants, and office buildings, among others.

7 || Review - *The review and recommendations of other reviewing bodies.*

No comments were received on the zone change application.

8 || Public Health, Safety, & Welfare - *Whether the application will harm the public health, safety, or general welfare.*

Development will be required to meet all applicable requirements regarding engineering, building construction, fire access and hydrants, and food safety, among others.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS: None.

Reviewing Agencies with No Comment: City Attorney, Development, Engineering Tech/GIS, MPO

Reviewing Agencies Not Responding: City Engineer

Other Comments Received: None

Encl: Zone Change Map
Aerial Photo Exhibit

cc: Owner
Agent/Applicant
File